

## Chapter

### High Court and Subordinate Courts

---

#### 1. Civil Cases : Court of District Judge : : Criminal Cases :

- |                    |                          |
|--------------------|--------------------------|
| (a) Revenue Court  | (b) Family Court         |
| (c) Sessions Court | (d) Commissioner's Court |

**MAIN 2024**

2. The Lok Adalat has many advantages. Which of the following statements about the advantages of the Lok Adalat is best described in the picture given above?



- (a) It is inexpensive
- (b) It is organised in various parts of the country
- (c) It works on the spirit of compromise
- (d) It reduces the burden of the higher courts

**MAIN 2024**

3. Given below are details of Indian citizens. Select the ones who are eligible for

| Candidate | Age | Details                                          |
|-----------|-----|--------------------------------------------------|
| P         | 65  | Is a distinguished jurist                        |
| Q         | 61  | Has been a High Court Advocate for 10 years      |
| R         | 67  | Has been a High Court Advocate for 5 years       |
| S         | 56  | Has held a judicial office for at least 10 years |

(a) P and R

(b) Q and S

(c) R and P

(d) Q and R

**MAIN 2024**

**4. Mention any two writs issued by the High Court.**

**MAIN 2024**

**5. The State Judiciary has a High Court as an apex body. In this context, answer the following:**

**(a) Describe the composition of a High Court?**

**(b) What is the territorial jurisdiction of a High Court?**

**(c) How has the independence of the judiciary been ensured?**

**MAIN 2024**

**6. Study the picture and answer the following questions.**



**(a) Identify the court whose logo is given in the picture on the right. How do these courts function?**

**(b) What are the advantages of resolution of disputes through such courts ?**

**(c) What is the scope of a Lok Adalat in India?**

**COMP 2024**

**7. Court of District Judge : Civil Cases : : Sessions Court : \_\_\_\_\_ Cases**

(a) Advisory

(b) Criminal

(c) Constitutional

(d) Appellate

**MAIN 2023**

**8. The Constitution of India provides for a High Court for each State. With reference to the High Courts and Subordinate Courts, answer the following questions:**

**(i) Who appoints the judges of the High Court? Mention any two qualifications required for a person to be appointed as a judge of a High Court.**

**(ii) Mention any three cases that come under the Original Jurisdiction of the High Court.**

**(iii) What are Lok Adalats? Mention any three advantages of the Lok Adalats.**

**MAIN 2023**

**9. With reference to the powers of the High Court, briefly describe the following :**

**(a) What is meant by the Original Jurisdiction of the High Court ? Mention two types of cases in which the High Court exercises Original Jurisdiction.**

**(b) Mention two types of cases in which the High Court exercises Appellate Jurisdiction.**

**(c) How does the High Court control the power of the Legislature and the Executive?**

**MAIN 2023**

**10. All the Courts, at the district level and below are known as Subordinate Courts. In this context, state the provision of the Subordinate Courts with reference to the following:**

**(a) Civil Courts**

**(b) Criminal Courts**

**(c) Courts of Revenue**

**MAIN 2023**

**11. How many High Courts are there in India?**

**(a) 25**

**(b) 30**

**(c) 32**

**(d) 28**

**SQP 2022**

**12. With reference to the powers of the High Court, answer the following questions :**

- (a) How does the High Court act as a custodian of the Constitution ?**
- (b) How does the High Court act as a protector of Fundamental Rights ?**
- (c) What do we mean when we say that the High Court is a 'Court of Record' ?**

**SQP 2022**

**13. Out of the following Union territories, which Union territory has a High court of it's own?**

- (a) Chandigarh**
- (b) Ladakh**
- (c) New Delhi**
- (d) Lakshadweep**

**COMP 2021**

**14. With reference to the jurisdiction of High Courts, write short notes on :**

- (a) Revisory Jurisdiction of High Courts.**
- (b) Its power to issue Writs.**
- (c) Its power to Judicial Review.**

**COMP 2021**

## Solution

1.

**Ans: (c)** Sessions Court

**Explanation:**

In the judicial system, civil cases are tried by the Court of the District Judge, while criminal cases of a serious nature are tried by the Sessions Court. Hence, the correct match for criminal cases is the Sessions Court.

2.

**Ans: (c)** It works on the spirit of compromise.

**Explanation:**

The picture shows two parties reaching an agreement through mutual understanding rather than conflict. Lok Adalat settles disputes through compromise and conciliation, where both sides agree voluntarily. This spirit of compromise is the core feature of Lok Adalat and helps in speedy and amicable justice.

3.

**Ans: (b)** Q and S

**Explanation:**

To be eligible for appointment as a Judge of the Supreme Court, a person must be at least 65 years of age at retirement and must satisfy **any one** of the following conditions:

- Be a distinguished jurist, or
- Have been a High Court judge for at least 5 years, or
- Have been an advocate of a High Court for at least 10 years.

Candidate **Q** has been a High Court Advocate for 10 years and is eligible.

Candidate **S** has held a judicial office for at least 10 years and is also eligible.

Hence, option **(b) Q and S** is the correct answer.

4.

**Ans:**

**(i) Habeas Corpus** – This writ is issued to secure the release of a person who has been unlawfully detained and to protect the right to personal liberty.

**(ii) Mandamus** – This writ directs a public authority to perform a duty that it is legally bound to carry out.

5.

**Ans:**

**(a) Composition of a High Court:**

Each High Court consists of a **Chief Justice and other judges** appointed by the **President of India**.

The President may:

(i) Appoint additional judges for a temporary period (not exceeding two years) to clear pending cases.

(ii) Appoint an acting Chief Justice when the Chief Justice is absent or unable to perform duties.

**(b) Territorial jurisdiction of a High Court:**

The Constitution provides for a **High Court for each State**, but Parliament may establish **one High Court for two or more States or Union Territories**.

At present, there are **21 High Courts in India**, some having jurisdiction over more than one State or Union Territory.

**(c) Independence of the Judiciary:**

The independence of the High Court is ensured in the following ways:

(i) A High Court judge holds office till the age of **62 years** and can be removed only by the **President**, following an address by both Houses of Parliament on grounds of proved misbehaviour or incapacity.

(ii) The salaries and allowances of judges are charged on the **Consolidated Fund of the State** and **cannot be reduced during their tenure**.

(iii) A judge can be transferred only by the President after consulting the **Chief Justice of India**, whose recommendation is based on consultation with senior judges.

(iv) After transfer, a judge is entitled to a **compensatory allowance**, without affecting salary.

6.

**Ans:**

**(a)** The logo shown in the picture represents the **Lok Adalat (People's Court)**.

Lok Adalats function by resolving disputes through **mutual consent and compromise**. Cases are settled amicably without formal court procedures, and the decisions are binding on both parties.

**(b) Advantages of resolving disputes through Lok Adalats:**

- They promote settlement through **compromise and mutual agreement**.
- They provide **quick and inexpensive justice**.
- The decisions are **final and binding**, with no appeal allowed.
- They help **reduce the burden on regular courts**.

**(c) Scope of Lok Adalat in India:**

Lok Adalats deal with civil cases, compoundable criminal cases, and disputes relating to public utility services such as transport, postal services, electricity, water supply, and telephone services. They play an important role in reducing the backlog of cases and making justice accessible to the weaker sections of society.

7.

**Ans: (b)** Criminal

**Explanation:**

The Court of a District Judge primarily deals with **civil cases**, while the **Sessions Court** has jurisdiction over **criminal cases**, especially serious offences. Hence, just as civil cases relate to the District Judge, criminal cases relate to the Sessions Court.

8.

**Ans:**

**(i)** The Judges of a High Court are appointed by the President of India.

Two qualifications required to be appointed as a Judge of a High Court are:

- The person must have been an advocate of a High Court (or of two or more such courts in succession) for at least 10 years, **or**
- The person must have held a judicial office in India for at least 10 years.

**(ii)** Three cases that come under the Original Jurisdiction of a High Court are:

- Cases related to the enforcement of Fundamental Rights under Article 226.
- Disputes relating to elections of members of Parliament or State Legislatures.
- Certain civil and criminal cases of a serious nature.

**(iii)** Lok Adalats are courts set up to provide alternative dispute resolution through compromise and settlement.

Three advantages of Lok Adalats are:

- They are inexpensive as no court fees are charged.
- Cases are settled quickly, saving time.
- Their decisions are final and binding, with no provision for appeal.

9.

**Ans:**

**(a) Original Jurisdiction of the High Court**

Original Jurisdiction means the authority of the High Court to hear certain cases directly, without them first being heard by subordinate courts.

The High Court exercises Original Jurisdiction in cases such as:

**(i)** Matters relating to wills, marriage, divorce, company law and contempt of court.

(ii) In the case of the Bombay and Madras High Courts, civil and criminal cases involving Parsis and Christians.

### **(b) Appellate Jurisdiction of the High Court**

The High Court hears appeals in:

(i) Criminal cases against the judgments of a Sessions Judge or an Additional Sessions Judge where the sentence of imprisonment exceeds seven years.

(ii) Appeals against the decisions of Assistant Sessions Judges, Chief Metropolitan Magistrates or other Judicial Magistrates where the sentence exceeds four years.

### **(c) Control over Legislature and Executive**

The High Court has the power of judicial review. It can examine laws passed by the Legislature and orders issued by the Executive and declare them invalid if they are found to be inconsistent with the provisions of the Constitution.

**10.**

**Ans:** All courts at the district level and below are called **Subordinate Courts**. Their provisions are as follows:

#### **(a) Civil Courts:**

##### **1. Small Causes / Petty Courts**

These courts deal with civil cases of very small monetary value. Their decisions are final and no appeal lies.

##### **2. Munsif's Court**

It hears civil cases involving amounts up to ₹2,000. Appeals from this court lie to the Sub-Judge.

##### **3. Court of Civil Judge / Sub-Judge**

This court hears civil cases involving amounts between ₹2,000 and ₹5,000. Appeals go to the District Judge.

##### **4. Principal Civil Court (District Judge)**

The District Judge's Court is the highest civil court in a district. It hears cases involving amounts above ₹5,000. Appeals from this court lie to the High Court.

## **(b) Criminal Courts:**

### **1. Sessions Court**

It is the highest criminal court in the district, presided over by the Sessions Judge. It tries serious offences like murder and dacoity and can award life imprisonment or death sentence (subject to confirmation by the High Court).

### **2. Chief Metropolitan / Chief Judicial Magistrate**

This court tries serious offences and can award imprisonment up to seven years. Appeals lie to the Sessions Court.

### **3. First Class Magistrate**

It tries minor offences and can award imprisonment up to two years or a fine up to ₹5,000.

### **4. Second Class Magistrate**

It tries less serious offences and can award imprisonment up to one year or a fine up to ₹1,000.

### **5. Third Class Magistrate**

It deals with petty offences and can award imprisonment up to one month or a fine up to ₹50.

## **(c) Courts of Revenue:**

Revenue courts deal with cases related to land revenue, land records, assessment, and collection of revenue.

- The **Court of the Tehsildar** hears cases relating to land records and revenue.
- The **Collector** is the highest revenue authority in a district and hears appeals from the Tehsildar.
- Above the Collector is the **Commissioner**, who supervises revenue administration.
- The **High Court** is the highest court of the state and has jurisdiction over civil, criminal, revenue, and constitutional matters.

**11.**

**Ans: (a) 25**

**Explanation:**

There are **25 High Courts in India**. Each state or group of states and Union Territories has a High Court. Some High Courts have jurisdiction over more than one state or Union Territory, which is why the total number is 25 and not equal to the number of states.

**12.**

**Ans:**

**(a) Custodian of the Constitution:**

The High Court acts as the custodian of the Constitution by exercising the power of Judicial Review. It can examine laws, executive orders, and ordinances passed by the State Legislature or other authorities. If any of these violate the Constitution or Fundamental Rights, the High Court can declare them null and void. It may also call for constitutional cases from lower courts to decide them or issue necessary directions.

**(b) Protector of Fundamental Rights:**

The High Court protects Fundamental Rights by issuing writs under Article 226 of the Constitution. These writs include Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo-Warranto. Through these writs, the High Court safeguards citizens against illegal actions of the State or public authorities.

**(c) Court of Record:**

The High Court is called a Court of Record because its judgments, proceedings, and records are preserved as legal evidence and can be cited as precedents in future cases. It also has the power to punish for contempt of court, ensuring respect for its authority and decisions.

**13.**

**Ans: (c) New Delhi**

**Explanation:**

New Delhi (National Capital Territory of Delhi) has its own High Court, known as the **Delhi High Court**. The other Union Territories mentioned—Chandigarh, Ladakh, and Lakshadweep—do not have independent High Courts of their own and fall under the jurisdiction of other High Courts.

**14.**

**Ans:**

**(a) Revisory Jurisdiction of High Courts:**

The High Court has the power to review the decisions of Subordinate Courts. If it finds that a lower court has acted beyond its authority or committed a serious irregularity, it may pass suitable orders. Under this jurisdiction, the High Court can withdraw a case from a Subordinate Court and decide it itself, especially when an important question of law or constitutional issue is involved.

**(b) Power to Issue Writs:**

Every High Court has the authority to issue writs to enforce Fundamental Rights as well as for other legal purposes. It can issue writs such as Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari to any person or authority within its jurisdiction. This power is wider than that of the Supreme Court, as High Courts can issue writs even in non-fundamental rights cases.

**(c) Power of Judicial Review:**

Like the Supreme Court, the High Court has the power of Judicial Review. It can examine laws, executive orders or ordinances passed by the State Legislature or authorities. If any of these are found to violate Fundamental Rights or any provision of the Constitution, the High Court can declare them null and void. The High Court may also take over constitutional cases from Subordinate Courts and issue directions for further proceedings.